

1 ENGROSSED HOUSE  
2 BILL NO. 3082

By: Kelley of the House

3 and

4 Hines of the Senate

5  
6 An Act relating to firefighters; amending 57 O.S.  
7 2021, Section 589, which relates to the Sex Offenders  
8 Registration Act; prohibiting fire departments from  
9 employing previously convicted sex offenders;  
10 providing penalties; defining term; and providing an  
11 effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 57 O.S. 2021, Section 589, is  
14 amended to read as follows:

15 Section 589. A. It is unlawful for any person registered  
16 pursuant to the Oklahoma Sex Offenders Registration Act or the Mary  
17 Rippey Violent Crime Offenders Registration Act to work with or  
18 provide services to children or to work on school premises, or for  
19 any person or business which contracts for work to be performed on  
20 school premises to knowingly and willfully allow any employee to  
21 work with children or to work on school premises who is registered  
22 pursuant to the Oklahoma Sex Offenders Registration Act or the Mary  
23 Rippey Violent Crime Offenders Registration Act. Upon conviction for  
24 any violation of the provisions of this subsection, the violator  
shall be guilty of a misdemeanor punishable by a fine not to exceed

1 One Thousand Dollars (\$1,000.00). In addition, the violator may be  
2 liable for civil damages.

3 B. 1. A person or business who offers or provides services to  
4 children shall ensure compliance with subsection A of this section  
5 by conducting a name search of employees at least annually against  
6 the registries maintained pursuant to the Oklahoma Sex Offenders  
7 Registration Act and the Mary Rippe Violent Crime Offenders  
8 Registration Act while such person is working with or serving  
9 children. All persons working with or providing services to  
10 children shall be required to sign a statement declaring that he or  
11 she is not currently required to register under the provisions of  
12 the Oklahoma Sex Offenders Registration Act or the Mary Rippe  
13 Violent Crime Offenders Registration Act. Compliance with the  
14 signed statement shall be mandatory for all persons working with or  
15 providing services to children, and there shall be no liability or  
16 obligation placed upon any person or business to ascertain the  
17 truthfulness of the affidavit. Any person or business having a  
18 contract with a school shall ensure compliance as provided by  
19 Section 6-101.48 of Title 70 of the Oklahoma Statutes.

20 2. Failure of any person or business who works with or provides  
21 services to children to conduct the annual name search of each  
22 person employed shall be a misdemeanor. Upon conviction for failure  
23 to conduct a name search, the violator shall be guilty of a  
24 misdemeanor punishable by a fine not to exceed One Thousand Dollars

1 (\$1,000.00). Refusal of any person who is employed to work with or  
2 provide services to children to sign a statement declaring they have  
3 no requirement to register as provided in this section shall be a  
4 misdemeanor, upon conviction, punishable by a fine not to exceed One  
5 Thousand Dollars (\$1,000.00), and the person shall be immediately  
6 terminated from employment. Any person discovering an employment or  
7 registration violation as required by any provision of law for any  
8 person currently employed to work with or provide services to  
9 children has a duty to and shall immediately report such findings to  
10 the district attorney.

11 C. It is unlawful for any law enforcement agency to employ any  
12 person as a peace officer or criminal investigator who has received  
13 a verdict of guilty or pled guilty or nolo contendere to any offense  
14 ~~required to register~~ that requires registration pursuant to the Sex  
15 Offenders Registration Act or the Mary Rippy Violent Crime Offenders  
16 Registration Act, including those receiving a verdict of guilt,  
17 pleading guilty or nolo contendere as part of a deferred judgment or  
18 other provision of law authorizing a delayed or suspended judgment  
19 or sentence. Every person receiving a verdict of guilty or pleading  
20 guilty or nolo contendere to any offense required to register  
21 pursuant to the Sex Offenders Registration Act or the Mary Rippy  
22 Violent Crime Offenders Registration Act shall be prohibited from  
23 being certified by the Council on Law Enforcement Education and  
24 Training (CLEET) as a peace officer, private investigator, or

1 security guard, and if at the time of the verdict or plea such  
2 person has been previously CLEET certified such certification shall  
3 be revoked. Any violator shall be guilty of a misdemeanor upon  
4 conviction of noncompliance with the provisions of this subsection.

5 D. 1. It is unlawful for any fire department in this state to  
6 employ any person as a firefighter who has received a verdict of  
7 guilty or pled guilty or nolo contendere to any offense that  
8 requires registration pursuant to the Sex Offenders Registration  
9 Act, including those receiving a verdict of guilt, pleading guilty  
10 or nolo contendere as part of a deferred judgment or other provision  
11 of law authorizing a delayed or suspended judgment or sentence. Any  
12 person who violates the provisions of this subsection shall, upon  
13 conviction, be guilty of a misdemeanor.

14 2. As used in this subsection, "firefighter" means a volunteer  
15 firefighter or a permanent salaried professional member of any fire  
16 department within the State of Oklahoma.

17 SECTION 2. This act shall become effective November 1, 2026.  
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1 Passed the House of Representatives the 4th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate